

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7937 on Affordable Housing and amending 1° the amended law of February 25, 1979 concerning housing assistance; 2° the amended law of July 19, 2004 concerning communal planning and urban development; 3° the amended law of March 25, 2020 concerning the Special Fund for Housing Development Support; 4° the law of July 30, 2021 relating to the Housing Pact 2.0
Deliberation No. 52/AV30/2023 of June 30, 2023

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPd") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or of a regulatory measure based on such legislative proposal, which relates to processing."

2. On July 21, 2022, the National Commission issued its opinion on Bill No. 7937 on Affordable Housing and amending 1° the amended law of February 25, 1979 concerning housing assistance; 2° the amended law of July 19, 2004 concerning communal planning and urban development; 3° the amended law of March 25, 2020 concerning the Special Fund for Housing Development Support; 4° the law of July 30, 2021 relating to the Housing Pact 2.0 (hereinafter referred to as the "Bill").

3. By letter dated March 31, 2023, the Minister of Housing invited the National Commission to express its opinion on the government amendments that were approved by the Council of Government in its meeting on the same day (hereinafter referred to as the "Amendments").

4. The National Commission regrets that the said Amendments do not take into account the observations made in its opinion of July 21, 2022, and therefore feels compelled to reiterate them in full.

5. The Amendments aim, in particular, to provide clarifications on the allocation methods for housing intended for affordable rental as well as on the personal data intended to be included in the national register of affordable housing (hereinafter referred to as the "RENLA"). However, the CNPD wishes to draw the authors' attention to certain inconsistencies that persist in its view.

I. On the persons and housing that may appear in the RENLA

6. The CNPD noted in its opinion of July 21, 2022 inconsistencies between the various provisions of the Bill, leading to uncertainties regarding the purposes of the RENLA as well as regarding the persons and housing that may appear in this newly created register.

7. Amendment 52 provides clarifications in that it now explicitly results from the new Article 74 that not only housing intended for affordable rental but also housing intended for affordable sale and for sale at moderate cost, as well as the buyers and members of their domestic community, are listed in the RENLA. However, what is the purpose, that is to say, the objective pursued, by the processing of the data of buyers and their domestic community in the RENLA? In this regard, it must be noted that it does not emerge from the Bill that the RENLA would be used in the context of determining the eligibility of buyers, or even in the context of the allocation of housing intended for affordable sale or at moderate cost. The National Commission therefore questions why it would be necessary to list the data of buyers and members of their domestic community in the RENLA. It recalls that the proposed processing constitutes an interference with the right to the protection of personal data, a right expressly enshrined in Article 31 of the revised Constitution. In accordance with Article 37 of the

revised Constitution, such a limitation must be provided for by law and can only be made under specific conditions.

CNPD

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regarding Bill No. 7937 on Affordable Housing and amending 1° the amended law of February 25, 1979 concerning housing assistance; 2° the amended law of July 19, 2004 concerning communal planning and urban development; 3° the amended law of March 25, 2020 concerning the Special Fund for Housing Development Support; 4° the law of July 30, 2021 relating to the Housing Pact 2.0
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if it is necessary in a democratic society and effectively meets objectives of general interest or the need to protect the rights and freedoms of others.

8. It should also be noted that the new article 75, which enumerates the categories of personal data processed via the RENLA, does not mention either the purchasers or the members of their domestic community. What data would therefore be processed for these categories of persons? There is also the question of why paragraph 3 of the new article 75 states that the minister (without mentioning the social landlord or even the social developer who are, according to the new article 74.3, to be jointly qualified with the minister as joint controllers) processes the data of applicant-tenants, candidate-tenants, and tenants, without mentioning the purchasers or the members of the domestic community.

9. Finally, the National Commission cannot align itself with the opinion of the Council of State which recommends the deletion of the new article 75 on the grounds that it would not provide any normative added value compared to the application of the GDPR. According to recital 45 and article 6.3 of the GDPR, national law may specify the types of personal data that are subject to processing. However, the authors must ensure that this provision exhaustively lists, for each category of affected persons, the categories of data processed via the RENLA and that the principles of the GDPR, particularly the principle of minimization, are respected.

II.

On the controller(s) of the processing

10. Amendment 52 adds, to the new article 74.3, the social developer to the list of joint controllers of personal data processing within the framework of the RENLA. However, the question arises as to which processing carried out via the RENLA the social developer would be considered a joint controller of the processing. Indeed, as stated in point 7 of this opinion, it does not appear from the draft law that personal data is processed via the RENLA to determine the eligibility of purchasers or to allocate housing intended for affordable or moderately priced sale. For the remainder, the National Commission refers to its opinion of July 21, 2022, in which it had already drawn the authors' attention to the importance of correctly determining the controller of the processing.

' Opinion of the Council of State of May 26, 2023, doc. pari. n° 7937/12, p. 30.

CNPD

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regarding draft law n° 7937 on affordable housing and amending 1° the amended law of February 25, 1979 concerning housing aid; 2° the amended law of July 19, 2004 concerning communal planning and urban development; 3° the amended law of March 25, 2020 concerning the Special Fund for Housing Development Support; 4° the law of July 30, 2021 concerning the Housing Pact 2.0
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Thus adopted in Belvaux on June 30, 2023.

The National Commission for Data Protection

Tine A. Larsen

President

Thierry Lallemand

Commissioner

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CNPD

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